

California Regional Water Quality Control Board  
North Coast Region

ORDER NO. 93-10  
ID NO. 1B800230MEN

WASTE DISCHARGE REQUIREMENTS

FOR

IRISH BEACH WATER DISTRICT  
15401 Forest View Drive  
Manchester, California

Mendocino County

The California Regional Water Quality Control Board, North Coast Region, (hereinafter the Board) finds that:

1. Irish Beach Water District provides water service and maintenance oversight for on-site septic systems in the community of Irish Beach. Irish Beach is located north of Irish Gulch and adjacent to the Pacific Ocean approximately 25 miles south of Fort Bragg and three miles north of Manchester in the southerly portion of Section 31, T14N, R16W, and the southerly portion of Section 36, T14N, R17W, and the northerly portion of Section 6, T13N, R16W, and the northerly portion of Section 1, T13N, R17W, as shown on Attachment "A".
2. On November 13, 1992, the Irish Beach Water District (hereinafter referred to as the discharger) submitted a report of waste discharge to consolidate and update existing waste discharge requirements, Order Nos. 80-23 and 85-6, adopted by the Board on March 27, 1980 and January 24, 1985 respectively.
3. The discharger has formed a wastewater disposal zone pursuant to Health and Safety Code Section 6955, et seq. Present waste water quantity is 25,000 gallons per day from 150 residences. A potential wastewater quantity of 80,000 gallons per day is anticipated from 400 residences.
4. Discharger disposal zone practices include:
  - a. Maintenance of individual wastewater disposal system records, including date of installation, as-built plans of the installed systems, and system service records.
  - b. Distribution of information to new owners and owners of new systems regarding maintenance practices that should be followed and local contractors that provide service.
  - c. System inspections and the turning of diversion valves on systems containing alternate rest fields. Otherwise secure certification from the owner that such was done pursuant to District notice.

- d. Pump each septic tank once every five years or as history dictates. Otherwise, secure certification from the owner that such was done pursuant to District notice.
  - e. Maintain wastewater pumps and insure that pump failure warning devices are installed and operational.
  - f. Check effluent levels in disposal trenches via breathers which serve this purpose.
  - g. Adopt and enforce ordinances for general practices.
  - h. Institute abatement proceedings.
  - i. Such other functions as seem advisable from time to time.
5. All installed systems are required to meet the guidelines and criteria established for individual waste disposal systems by the Regional Board's Basin Plan. To determine the size, location, and type of individual system installed, percolation tests, information on the area soils, and the depth to groundwater is required. The Regional Board has delegated jurisdiction for individual system investigation and permitting authority to the Mendocino County Health Officer.
6. The anticipated development of additional lots in the service area will require Mendocino County approval and compliance with Mendocino County planning criteria, including compliance with the California Environmental Quality Act.
7. The Board adopted Water Quality Control Plans for the Klamath River Basin (1A) and the North Coastal Basin (1B) on March 20, 1975. The Klamath River Basin Plan (1A) was combined with the North Coastal Basin Plan (1B) to form the Water Quality Control Plan for the North Coast Region. The Plan for the North Coast Region was adopted by the Board on April 28, 1988 and approved by the State Water Resources Control Board on November 15, 1988. The Plan includes water quality objectives and receiving water limitations.
8. The beneficial uses of Irish Gulch and the Pacific Ocean include:
- a. municipal and domestic supply
  - b. agricultural supply
  - c. groundwater recharge
  - d. freshwater replenishment
  - e. navigation
  - f. water contact recreation
  - g. noncontact water recreation
  - h. ocean commercial and sport fishing
  - i. warm freshwater habitat
  - j. cold freshwater habitat
  - k. saline water habitat

- l. wildlife habitat
  - m. preservation of rare and endangered species
  - n. marine habitat
  - o. fish migration
  - p. fish spawning
  - q. shellfish harvesting
9. Beneficial uses of areal groundwaters include:
- a. domestic water supply
  - b. agricultural water supply
10. The discharge is presently governed by Waste Discharge Requirements Order No. 80-23, adopted by the Board on March 27, 1980 and Order No. 85-6, adopted by the Board on January 24, 1985.
11. The action to adopt waste discharge requirements is exempt from the provisions of the California Environmental Quality Act (Public Resources Code Section 21000 et. seq.), in accordance with Title 14, California Code of Regulations, Section 15301.
12. The Board has notified the discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations.
13. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

THEREFORE, IT IS HEREBY ORDERED that Waste Discharge Requirements Order Nos. 80-23 and 85-6 are rescinded and the discharger, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. DISCHARGE PROHIBITIONS

1. The discharge of any waste not specifically regulated by this Order is prohibited.
2. Creation of a pollution, contamination, or nuisance, as defined by Section 13050 of the California Water Code (CWC), is prohibited. [Health and Safety Code, Section 5411]
3. Any surface discharge of waste from anywhere within the collection, treatment, or disposal facilities is prohibited.

B. SOLIDS DISPOSAL

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of at a legal point of disposal, and in accordance with the provisions of Title 23, Division 3, Chapter 15 of the California Code of Regulations or as waived pursuant to Section 13269 of the California Water Code.

C. PROVISIONS

1. A copy of this Order shall be maintained at the discharge facility and be available at all times to operating personnel.

2. Severability

Provisions of these waste discharge requirements are severable. If any provision of these requirements is found invalid, the remainder of these requirements shall not be affected.

3. Operation and Maintenance

The discharger must maintain in good working order and operate as efficiently as possible any facility or control system installed by the discharger to achieve compliance with the waste discharge requirements.

4. Change in Discharge

The discharger must promptly report to the Board any material change in the character, location, or volume of the discharge.

5. Change in Ownership

In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the discharger, the discharger must notify the succeeding owner or operator of the existence of this Order by letter, a copy of which must be forwarded to this office.

6. Vested Rights

This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, nor protect the discharger from his liability under federal, State, or local laws, nor create a vested right for the discharger to continue the waste discharge.

7. Monitoring

The discharger must comply with the Contingency Planning and Notification Requirements Order No. 74-151 and any modifications to this document as specified by the Executive Officer. This document is attached to this Order and incorporated herein.

8. Inspections

The discharger shall permit authorized staff of the Board:

- a. entry upon premises in which an effluent source is located or

- in which any required records are kept;
- b. access to copy any records required to be kept under terms and conditions of this Order;
- c. inspection of monitoring equipment or records; and
- d. sampling of any discharge.

9. Noncompliance

In the event the discharger is unable to comply with any of the conditions of this Order due to:

- a. breakdown of waste treatment equipment;
- b. accidents caused by human error or negligence; or
- c. other causes such as acts of nature;

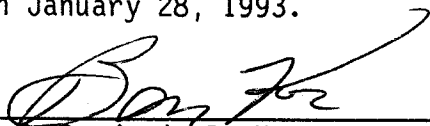
the discharger must notify the Executive Officer by telephone as soon as he or his agents have knowledge of the incident and confirm this notification in writing within two weeks of the telephone notification. The written notification shall include pertinent information explaining reasons for the noncompliance and shall indicate the steps taken to correct the problem and the dates thereof, and the steps being taken to prevent the problem from recurring.

10. Revision of Requirements

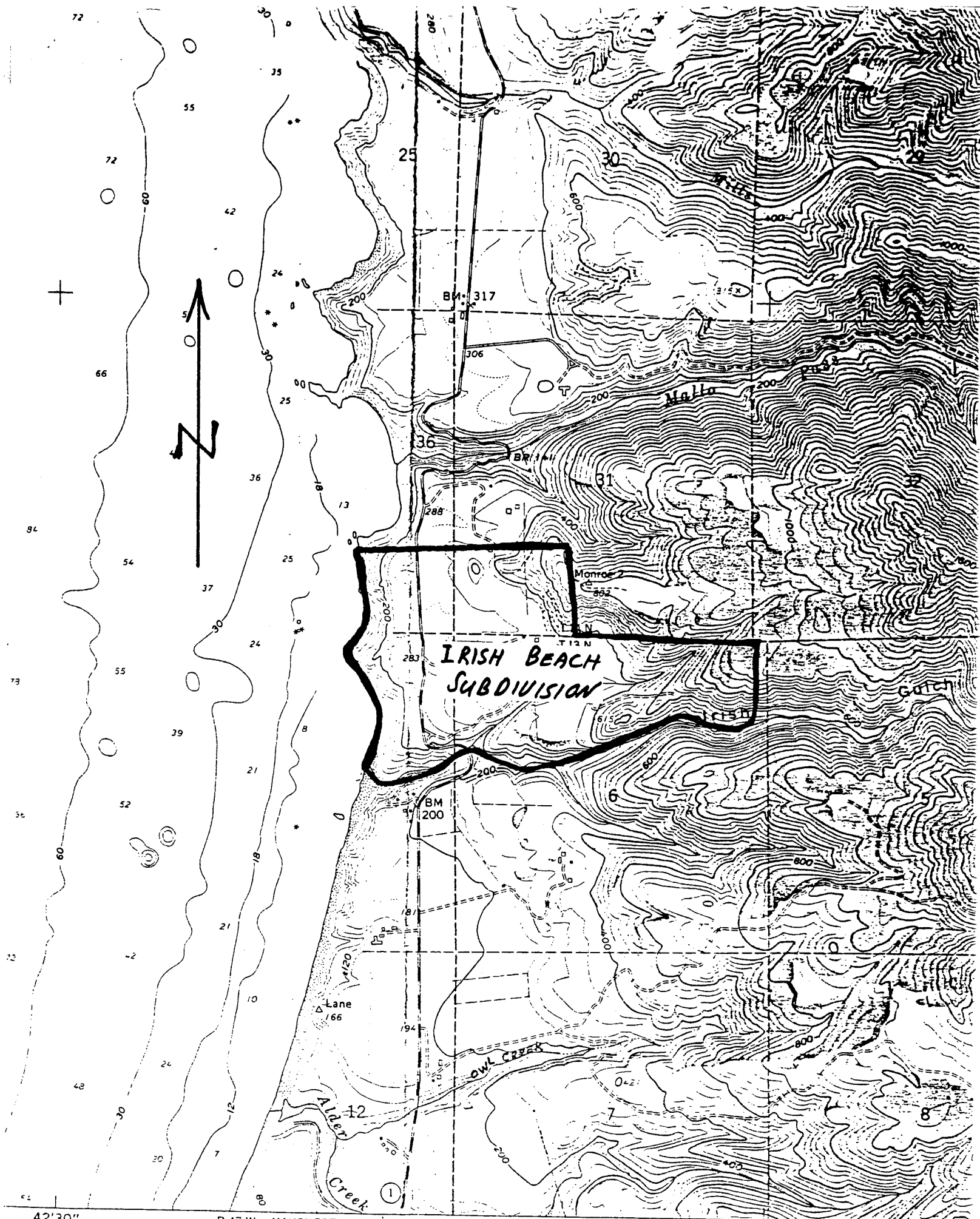
The Board will review this Order periodically and may revise requirements when necessary.

Certification

I, Benjamin D. Kor, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, North Coast Region, on January 28, 1993.



Benjamin D. Kor  
Executive Officer



42'30"

R. 17 W. MANCHESTER 2.1 MI. (POINT ARENA)  
POINT ARENA 7.8 MI.

R. 16 W.

40'

SCALE 1:24000

Attachment "A"

1 MILE

California Regional Water Quality Control Board  
North Coast Region

CONTINGENCY PLANNING AND NOTIFICATION REQUIREMENTS

FOR

ACCIDENTAL SPILLS AND DISCHARGES

ORDER NO. 74-151

The California Regional Water Quality Control Board, North Coast Region, finds that:

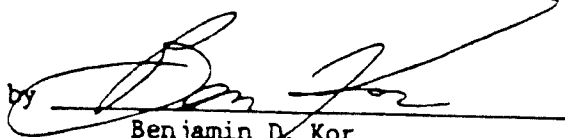
1. Section 13225 of the Porter-Cologne Water Quality Act requires the Regional Board to perform general duties to assure positive water quality control.
2. The Regional Board has been advised of situations in which preparations for, and response to accidental discharges and spills have been inadequate.
3. Persons discharging waste or conveying, supplying, storing, or managing wastes or hazardous materials have the primary responsibility for contingency planning, incident reporting and continuous and diligent action to abate the effects of such unintentional or accidental discharge.

THEREFORE, IT IS HEREBY ORDERED THAT:

- I. All persons who discharge wastes or convey, supply, store, or otherwise manage wastes or other hazardous material shall:
  - A. Prepare and submit to this Regional Board, according to a time schedule prescribed by the Executive Officer, a contingency plan defining the following:
    1. Potential locations and/or circumstances under which accidental discharge incidents might be expected to occur,
    2. Possible water quality effects of accidental discharges,
    3. The conceptual plan for cleanup and abatement of accidental discharge incidents, including:
      - a. The individual who will be in charge of cleanup and abatement activities on behalf of the discharger,
      - b. The equipment and manpower available to the discharger to implement the cleanup and abatement plans,
  - B. Immediately report to the Regional Board any accidental discharge incidents. Such notification shall be made by telephone as soon as the responsible person or his agent has knowledge of the incident.
  - C. Immediately begin diligent and continuous action to cleanup and abate the effects of any unintentional or accidental discharge. Such action shall include temporary measures to abate the discharge prior to completing permanent repairs to damaged facilities.

- D. Confirm the telephone notification in writing within two weeks of the telephone notification. The written notification shall include: reasons for the discharge, duration and volume of the discharge, steps taken to correct the problem and steps being taken to prevent the problem from recurring.
- II. Upon original receipt of phone report (I.B.), the Executive Officer shall immediately notify all affected agencies and known users of waters affected by the unintentional or accidental discharge.
- III. Provide updated information to the Regional Board in the event of change of staff, size of the facility, or change of operating procedures which will affect the previously established contingency plan.
- IV. The Executive Officer or his employees shall maintain liaison with the discharger and other affected agencies and persons to provide assistance in cleanup and abatement activities.
- V. The Executive Officer shall transmit copies of this Order to all persons whose discharges of waste handling activities are governed by Waste Discharge Requirements or an NDPES permit. Such transmittal shall include a current listing of telephone numbers of the Executive Officer and his key employees to facilitate compliance with Item I.B of this Order.

Ordered by

  
Benjamin D. Kor  
Executive Officer

July 24, 1974

(Retyped February 15, 1990)

Your primary notification should be to the Regional Board office in Santa Rosa at (707) 576-2220. During off hours, you will be able to leave a recorded message at that number and, if you have a spill or discharge emergency, you will also be referred to the State Office of Emergency Services (OES) at (800) 852-7550. OES maintains a roster of key employees and will relay your notification to Regional Board staff.